

chapters IV.B.2.4.1 on the examining divisions' discretion under R. 137(3) EPC; IV.C.4.5 on the opposition divisions' discretion to admit late-filed submissions; V.A.9.2 on discretion to remit; and V.A.4.3.4 and following on the boards' discretion to admit late-filed submissions.

b) Proper exercise of discretion

It is established case law that, on appeal against a decision taken by a department of first instance in exercise of its discretion, it is not for the board to review all the facts and circumstances of the case as if it were in that department's place and decide whether or not it would have exercised discretion in the same way. If the EPC requires that a department of first instance exercise discretion in certain circumstances, that department should have a certain degree of freedom to do so without interference from the boards. They should overrule the way in which it exercised its discretion in reaching a decision in a particular case only if they conclude that it did so in accordance with the wrong principles, without taking the right principles into account or in an arbitrary or unreasonable way, thereby exceeding the proper limits of its discretion (on this point, see, in particular, G 7/93, OJ 1994, 775, and T 640/91, OJ 1994, 918, where the board found that the department of first instance had exercised its discretion unreasonably and that this amounted to a substantial procedural violation).

Although G 7/93 was concerned with a specific situation, namely an examining division's refusal to admit amendments after issuing a communication under R. 51(6) EPC 1973, the boards have applied the criteria established there to their review of other discretionary decisions of the departments of first instance (T 820/14, see also T 858/17). For instance, the same approach has been taken to reviewing opposition division decisions on the admission of late-filed submissions (T 1209/05, T 1652/08, T 902/09, T 1253/09, T 544/12, T 1882/13).

In several decisions, e.g. T 1614/07, T 849/08, T 1788/12, T 1643/11, T 89/15, the boards have cited one or both of G 7/93 and T 640/91 when reviewing whether the department of first instance exercised its discretion properly.

In T 820/14 the board pointed out that so long as departments of first instance had exercised their discretion properly, the boards **as a rule** should not overrule their decisions and substitute their own discretion for that exercised at first instance. That applied regardless of whether not they ultimately decided to admit the previously refused submissions, uphold the refusal to admit them on different grounds or remit the case to the department of first instance and give it an opportunity to exercise its discretion anew. By the same token, however, the case law established in G 7/93 **could not be interpreted as imposing on the boards any duty** to uphold a proper exercise of discretion at first instance.

c) Review of first-instance discretionary decisions taken on substantive grounds

In T 1816/11, the sole reason for the examining division's refusal to admit the main request had been that it did not meet the requirements of Art. 84 and 56 EPC. The board held that,

in such cases, where the discretionary decision had been taken on substantive rather than procedural grounds, the criteria established in G 7/93 could not apply (likewise T 820/14, T 556/13 and T 971/11). Rather, the substantive assessment (of clarity, inventive step, etc.) underlying the decision was fully open to review, as this went to the very essence of the boards' power of review.

In T 2342/13, as to the examining division's reason for not admitting the auxiliary request, namely a prima facie lack of inventive step, the board considered that a question relating directly to the compliance of a request with a provision of substantive patent law was to be assessed by the board itself and that on such a point there was no latitude for deferring to the view of the department of first instance (cf. T 1816/11, similar T 2343/13 and T 1159/13).

The board in T 1820/13 added that, although an opposition division's exercise of discretion could, as a rule, be reviewed only to a limited extent, i.e. only for abuse or errors, that could not mean that any substantive issues underlying its resulting decision were not open to review by the boards. Such issues went to the very essence of the boards' power of review and so they were called on to use their own discretion under Art. 12(4) RPBA 2007 (see T 1816/11). Thus, their review of an exercise of discretion had to include checking any underlying prima facie examination, for example as to whether it was vitiated by manifest errors (see also T 1332/17).

In T 188/16, the opposition division had not admitted the second auxiliary request into the opposition proceedings because the amended feature did not meet the requirements of Art. 123(2) EPC. The board stated that, in such cases, it was incumbent on the boards for the purposes of applying Art. 12(4) RPBA 2007 to review the substantive assessment on which the opposition division had based its discretionary decision.

In T 47/14 the issue was whether the opposition division had exercised its discretion improperly as a result of being mistaken as to the citation's technical relevance. The board found that it was certainly open to it to review the substantive basis for an opposition division's exercise of discretionary decision if the resulting decision was manifestly erroneous (see T 109/08).

3.4.2 Development of the case law on reviewing first-instance discretionary decisions

a) Early case law on exercising discretion

In some early decisions, the boards took the view that facts, evidence and requests that a department of first instance had already decided not to admit in a proper exercise of its discretion should normally not be admitted on appeal either.

In T 267/03, for example, the board held that, where the opposition division had properly exercised its discretion in deciding under Art. 114(2) EPC 1973 not to admit a late submission, the boards were generally bound to refuse its admission on appeal too (see also T 927/04).

The board in T.28/10 held that the findings in G.7/93 (OJ 1994, 775) on reviewing discretionary decisions were of general relevance and so to be borne in mind when applying Art. 12(4) RPBA 2007. Accordingly, the board had to confine itself to reviewing the opposition division's exercise of discretion in deciding not to admit late-filed submissions and set aside its decision only in the event that it had done so improperly. It would otherwise undermine the discretion conferred on the opposition division under R. 116 EPC (see also T.2102/08, T.484/11).

b) Case law on exercise of discretion under Art. 12(4) RPBA 2007

In a number of decisions, the boards have observed that, under Art. 12(4) RPBA 2007, they generally have their own margin of discretion to admit on appeal facts, evidence and requests refused by a department of first instance in proper exercise of its discretion.

In T.556/13, the board took the view that the jurisprudence is not to be understood as meaning that the discretion conferred on the boards of appeal under Art. 12(4) RPBA 2007 is limited to such an extent that the board must generally hold inadmissible a request which had not been admitted into the proceedings by the opposition division by a correct discretionary decision. Thus, it is not ruled out that, in view of the particular facts and circumstances of a particular case, the board will not hold a request inadmissible, although it was rightly not admitted into first-instance proceedings by the opposition division. This may occur, for example, if the board is confronted with additional facts and different circumstances or with additional submissions made by a party in the appeal proceedings. Another example could be that the reasons for the contested decision themselves contain considerations which go beyond those which were relevant for the opposition division's discretionary decision not to admit a request (see also T.2136/16).

In T.945/12 the board referred to some decisions where it was stated that in the case of a review of first-instance discretionary decisions a board of appeal nevertheless had to exercise its discretion under Art. 12(4) RPBA 2007 independently, giving due consideration to the appellant's additional submissions. In doing so, the board of appeal was not re-exercising the discretion of the department of first instance based on the case as it was presented then, but rather taking into account additional facts and different circumstances while exercising its own discretion under Art. 12(4) RPBA 2007 (see also T.2219/10, T.971/11).

3.4.3 The boards' own discretion

a) Submissions refused at first instance admitted on appeal

In the cases reported here, the boards admitted on appeal facts, evidence and requests refused at first instance, some of them pointing out that they have their own discretion to do so and are generally not bound in this by how the department of first instance exercised its discretion (see, in particular, T.820/14 and, similarly, T.2219/10, T.1811/13, T.795/14, T.1817/14, T.291/15, T.575/15).

In T.971/11 the opponent (appellant) filed document B1 two days before the oral proceedings before the opposition division, which did not admit it into the proceedings. The board stated that the opposition division had based its discretionary decision on the principles established by the jurisprudence and had not acted in an unreasonable way. Together with its statement of grounds of appeal, the appellant re-submitted document B1. The board considered whether it had discretion to admit a document which was not admitted in the first-instance proceedings. According to Art. 12(4) RPBA 2007 the non-admission of a document which was not admitted in the first-instance proceedings into the appeal proceedings is at the discretion of the board. The board referred to the established case law, according to which a filing made with the statement of grounds of appeal should not be considered inadmissible if it is an appropriate and immediate reaction to developments in the previous proceedings. The board has to exercise its discretion under Art. 12(4) RPBA 2007 independently, giving due consideration to the appellant's additional submissions. In the judgement of the board, a document which would have been admitted into appeal proceedings if it had been filed for the first time at the outset of those proceedings should not, however, be held inadmissible for the sole reason that it was already filed before the department of first instance (and not admitted). To impose such a limitation on the discretion conferred by Art. 12(4) RPBA 2007 could even have the undesirable effect of encouraging a party to hold back a document during the opposition proceedings, only to present it at the appeal stage. The board admitted the document (see also T. 876/05, T. 1403/13, T. 1768/17, T. 1964/17).

In T.2219/10 the board stated that although T.971/11 concerned the admission of documents in opposition, similar considerations applied with respect to the question of whether sets of claims filed with the grounds of appeal which had not been admitted in the first-instance proceedings should be admitted into the appeal proceedings. This is especially the case in ex-parte proceedings, in which issues of equal treatment of adverse parties do not arise. In the case in hand, there was no need to examine whether the examining division had correctly exercised its discretion in not admitting the auxiliary request filed at a late stage of the first instance proceedings, since in the exercise of its own discretion under Art. 12(4) RPBA 2007 the board admitted all the appellant's requests, including the main request, into the proceedings. See also T. 1888/18.

In T.575/15 the board was of the opinion that it had the discretion to admit auxiliary requests 3 and 4, which had not been admitted by the examining division. Since at least some of the fundamental objections against the higher-ranking requests applied to these dependent claims as well, the board saw no reason not to admit them and hence took them into account.

In T.1811/13 the board stated that the fact that the opposition division had not admitted documents HL13 and its translations did not preclude the board from admitting them if it considered them to be relevant (see T.971/11). This was not to be understood to mean that the opposition division had necessarily exercised its discretion incorrectly; the procedural situation simply was not the same any more. In the case in hand, the board found document HL13 to be relevant because it disclosed a feature that was critical for the assessment of inventive step.

In T.291/15 the board stated that the fact that the opposition division did not admit a late-filed document and did not exceed the proper limits of its discretion by not admitting it did not, in principle, prevent the board from admitting the document pursuant to Art. 12(4) RPBA 2007, in particular if it considered it to be prima facie relevant and taking into account additional facts and different circumstances (T.971/11, T.1811/13).

In line with T.971/11 and T.2219/10 the board exercised its discretion in T.945/12 with regard to auxiliary request I in light of the new circumstances and submissions, while taking into account the reasoning given by the opposition division for not admitting the very similar request in the first instance proceedings. The board noted that most of the reasons invoked by the opposition division no longer applied. Since auxiliary request I was submitted with the grounds of appeal, both the board and the opponent had time to examine the request. The board therefore decided to admit the request into the appeal proceedings.

The boards in T.490/13, T.1397/14, T.556/13 and T.368/16 likewise admitted, on appeal, requests not admitted in the opposition proceedings.

b) Submissions not admitted by the boards

In the cases reported here, the boards decided **not to admit** facts, evidence and requests already not admitted at first instance.

In T.584/09 of 10 June 2013, the board found that the opposition division had given sufficient reasons for its exercise of discretion and applied the correct criteria. Citing T.640/91, it held that it was not for it to review whether, as the appellant had argued, the opposition division might have been mistaken as to the relevance of the documents in question. In T.1643/11 the board was not convinced that the opposition division had exercised its discretion in an unreasonable way or according to the wrong principles, nor did it consider that that exercise was based on a manifestly wrong technical assumption. For these reasons the board confirmed the division's decision not to admit D9 and D13 into the proceedings.

In T.182/12, the appellant had requested in its statement of grounds of appeal that its patent be maintained on the basis of a request identical to an auxiliary request that the opposition division had refused to admit. Its failure to file it earlier had been at least partly a procedural tactic and in any event not justified by an unexpected turn of events. The board therefore saw no reason to overrule the opposition division's exercise of discretion and concluded that, since it too could not admit the appellant's sole request, the appeal had to be dismissed.

In T.1882/13, the opposition division had refused to admit a document on the ground that it was irrelevant. Finding that to be the right criterion for deciding whether to admit late-filed documents in opposition proceedings and that the division had not applied it unreasonably or arbitrarily, the board upheld its decision.